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Cottesmore HR follow up

1 message

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To: Georgie Hodgson <georgiehodgson@cottesmore.brighton-hove.sch.uk>

Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Hi Georgie,

Following on from our meeting last week I have spoken to our legal director who has said the following:

The staff have a right to confidentiality, and this has been breached in sharing this with the SENCO. There are no grounds for this as far as I can see. What does their employee handbook say or employee privacy notice? The head authorised the access so it isn't unauthorised access to the data but the head shouldn't have authorised that access. Ultimately, the Head should know and should ensure confidentiality for staff is maintained, if she wants the SENCO's support on HR matters, her role should reflect that, policies be updated and staff made aware.

She shouldn't be involved in the latter, it is highly confidential and I would recommend they take some HR advice on how to handle it. This isn't for us to advise on really but this is how discrimination cases arise.

Sickness records generally just form part of the HR file and are retained throughout employment and for 6 years after the end of employment so she may have 10 years on file if she has been there that long but it is not relevant for the request made, there are only 8 reasons for refusing a flexible working request, previous pattern of sickness is not one of them.

I hope that helps,

Many thanks,

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